

24STCV05817 24STCV05817

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-05

Motion: PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET THREE AND SPECIAL INTERROGATORIES, SET ONE FROM DEFENDANT WHISK CLEANING SERVICES, INC.

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Case Number: 24STCV05817 Hearing Date: August 5, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

FILIBERTA

MORALES, an individual,

Plaintiff,

vs.

LYNEER STAFFING SOLUTIONS, LLC, a Delaware limited

liability company; HARBOR BUILDING SERVICE, a California Corporation; WHISK

CLEANING SERVICES, INC., a California Corporation; and DOES 1 through 20,

Inclusive,

Defendants.

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CASE

NO.: 24STCV05817

[TENTATIVE] ORDER RE: PLAINTIFF'S

MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET THREE AND
SPECIAL INTERROGATORIES, SET ONE FROM DEFENDANT WHISK CLEANING SERVICES, INC.

Dept. 733

8:30 a.m.

August 5, 2026

I.

INTRODUCTION

This is a FEHA
action.

On March 8, 2024,

Plaintiff Filiberta Morales ("Plaintiff") filed a complaint against Defendants
Lyneer Staffing Solutions, LLC ("Lyneer"), Harbor Building Service ("Harbor"),
and Whisk Cleaning Services, Inc. ("Whisk") (collectively, "Defendants"),
alleging causes of action for (1) Discrimination in Violation of Gov't Code §§
12940, et seq., (2) Retaliation in Violation of Gov't Code §§ 12940, et
seq., (3) Failure to Prevent Discrimination and Retaliation in Violation of

Gov't Code §§ 12940(k), (4) Failure to Provide Reasonable Accommodations in Violation of Gov't Code §§ 12940, et seq., (5) Failure to Engage in a Good Faith Interactive Process in Violation of Gov't Code §§ 12940, et seq., and (6) Wrongful Termination in Violation of Public Policy.

On May 4, 2026,
Plaintiff filed the instant motions to compel further responses to Requests for Production, set three and Special Interrogatories, set three (together, "Discovery Requests") from Whisk.

On July 23, 2026,
Whisk filed oppositions.

No reply was
filed.

II. LEGAL STANDARD

1. Interrogatories

Within 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve response to them on the propounding party, unless otherwise stipulated or ordered. (Code Civ. Proc. § 2030.260, subd. (a).) Code of Civil Procedure section 2030.300 sets forth, in relevant part, that a propounding party may move for an order compelling a further response to an interrogatory if the propounding party deems that:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.

(Code Civ. Proc., § 2030.300, subd. (a).) If a party fails

to timely respond to interrogatories, they waive any objection to the interrogatories, which the court may relieve based on a determination that the party subsequently served a compliant response and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290.)

2.

Requests
for Production

Code of Civil Procedure section 2031.220

states: "A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production."

Code of Civil Procedure section 2031.320(a) states: "If a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance."

The demanding party may move for an order compelling further responses to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).)

Motions to compel further responses to Requests for Production must set forth specific facts showing good cause justifying the discovery sought by the request.

(Code Civ. Proc., § 2031.310(b).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531; see also Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98 [characterizing good cause as “a fact-specific showing of relevance”]; Tbg Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448 [the burden to show good cause for production “is met simply by a factspecific showing of relevance.”].) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to disclosure of the documents. (Kirkland, supra, 95 Cal.App.4th at 98.)

Code

Complaint Response

A code-compliant response to a request for production consists of any of the following: (1) a statement that the party will comply, (2) a representation that the party lacks the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.210.) A statement that the party will comply must state that the requests for production “will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Id. § 2031.220.) “If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.” (Id. § 2031.240(a).) If an objection is made, the responding party must “[i]dentify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.” (Id. § 2031.240(b)(1).)

Separate Statement

According to California Rules of Court, rule 3.1350(c)(2), a motion to compel further responses must always be

accompanied by a separate statement containing the requests and the responses, verbatim, as well as reasons why a further response is warranted. (Cal. Rules of Court, rule 3.1345(a).) The separate statement must also be complete in itself; no extrinsic materials may be incorporated by reference. (Id. at Rule 3.1345(c).)

Here, on May 4, 2026, Plaintiff filed Separate Statements to the instant motions adhering to the requirements of California Rules of Court, Rule 3.1345(a).

Thus, this requirement has been met.

Timeliness

A motion to compel a further response to a request for production must be noticed within 45 days of the service of the verified response, or any verified supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. Otherwise, the propounding party waives any right to compel further response to the demand. (See Code Civ. Proc., § 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.)

“[T]he time within which to make a motion to compel production of documents is mandatory and jurisdictional just as it is for motions to compel further answers to interrogatories.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Ibid.*)

Here, on February 12, 2026, Plaintiff served upon Whisk the Discovery Requests. (Kim Decl., ¶ 3, Ex. 1.) On March 16, 2026, Whisk served its responses. (Id. ¶ 5, Ex. 3.) Given that the instant motions were filed on May 4, 2026, they are timely.

Meet and Confer

Pursuant to Code

of Civil Procedure section 2031.310(b)(2) a motion to compel further responses to a request for production "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code

Civ. Proc., § 2031.310(b)(2).) "A meet

and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution

of each issue presented by the motion."

(Id. § 2016.040.)

Here,

Plaintiff's counsel provides that she sent a meet and confer letter to Whisk regarding its discovery responses. (Id. ¶ 5.) On April 11, 2026,

Whisk requested an extension to respond to Plaintiff's meet and confer letter. (Id.

¶ 6.) Plaintiff's counsel granted an extension, but asserts that no

supplemental responses were provided. (Ibid.) These motions followed.

Solely sending a

single meet and confer letter without any further effort to discuss does not amount to a sufficient meet and confer. This information can be found in this department's Courtroom Information. (See Dept. 73 Courtroom Information § 7 ["In general, a letter or email laying out in detail all of the concerns about the discovery in question will not satisfy this requirement, unless it is followed up by a telephone call or in person meeting or a genuine attempt to arrange for a telephone call or in person meeting."].)

The Court finds

the parties' meet and confer efforts to be inadequate, and thus the meet and confer requirement has not been met.

III.

CONCLUSION

Thus,

Based on the foregoing, Plaintiff's motions to

compel further are CONTINUED to Tuesday, September 8, 2026 to allow the parties to properly meet and confer either in person or by videoconference.

If the motions are to remain on calendar, the parties are each hereby

ordered to submit a supplemental meet and confer declaration at least five (5)

court days prior to the hearing date outlining compliance with the meet and confer requirement and any outstanding disputes regarding the discovery at issue.

Dated this 5th
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court